

Joint lease protection guide, documentation strategies, exit planning — Action Checklist

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CALCULATE YOUR FINANCIAL EXPOSURE

- ☐ **Calculate Your Exact Monthly Rent and Roommate Share:** Open a spreadsheet or grab a piece of paper and write down your total monthly rent amount and exactly what portion your roommate owes so you know the precise dollar amount at stake when they fail to pay.
- ☐ **Review Your Lease for Late Fee Clauses and Grace Period Rules:** Find the specific section of your lease that outlines late fees, how many days past due before they're applied, and any grace period language to understand what additional charges could accumulate each month the shortfall continues.
- ☐ **Calculate Your Total Potential Liability by Adding Your Roommate's Share Plus All Accumulated Charges:** Use the formula Your Roommate's Portion Plus Late Fees Plus Any Other Charges to determine your current financial exposure, which forms the foundation for all your protection decisions.
- ☐ **Understand That Joint and Several Liability Means the Landlord Can Pursue You for the Full Rent Amount:** Accept that legally your landlord can come after you for the entire rent owed, not just your share, which is why calculating your exact exposure and building your paper trail matters more than hoping they'll leave you alone.

DOCUMENT YOUR RESPONSIBLE BEHAVIOR

- ☐ **Create a Written Record of Every Payment You Make Including Dates and Confirmation Numbers:** Start a dedicated folder or spreadsheet where you log each rent payment with the date, amount, confirmation number, and any receipts to establish irrefutable proof that you were the responsible paying tenant.
 - ☐ **Save All Text Messages and Emails to Your Roommate Requesting Rent Payment:** Keep a running archive of every communication where you asked your roommate about their share of the rent, including the dates and your polite but firm requests, so you have evidence of your proactive efforts.
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- ☐ **Submit a Written Explanation to Your Landlord Identifying Yourself as the Responsible Party:** Send an email or letter to your property manager clearly stating that you have paid your portion of the rent in full and providing your documented payment records with dates and amounts.
- ☐ **Request a Formal Meeting With Your Landlord to Present Yourself as the Reliable Tenant:** Ask to schedule a call or in-person conversation where you lead with your payment history, explain the roommate situation factually, and demonstrate that you're not the cause of the problem.

NEGOTIATE YOUR EXIT WITH YOUR LANDLORD

- ☐ **Propose That Your Landlord Draft a New Lease With Only Your Name as the Cleanest Exit Option:** Ask directly whether they'd be willing to negotiate a new lease agreement that removes your roommate from the arrangement entirely, which would cleanly separate your liability from theirs.
- ☐ **Request Written Confirmation That You Paid Your Rent Portion on Time This Month:** Ask your landlord to acknowledge in writing that your share of the rent was received on schedule, creating a paper trail that proves you were not the source of the payment shortfall.
- ☐ **Confirm That Your Landlord Will Not Report This Incident to Future Landlords as a Negative Reference:** Have a direct conversation about how they'll respond to rental reference inquiries and get their agreement in writing that your record will reflect your responsible history, not your roommate's failure.
- ☐ **Inquire About Your Landlord's Planned Next Steps Regarding Your Roommate's Non-Payment:** Ask directly whether they intend to pursue eviction, wait for your roommate to catch up, or negotiate with you about options so you understand the timeline you're working with and can plan accordingly.

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